3721

Executive Order.

The Consular Regulations are hereby amended as follows:

Paragraph 182 is amended to read as follows:

182. *Consular fees.*—Whenever any master or commander of a vessel of the United States has occasion for any consular or other official service which any consular officer of the United States shall be authorized by law or usage officially to perform, he shall apply to the consular officer at the consulate where such service is required, to perform such service; but no vessel's fees shall be collected by consular officers from such a vessel. (Paragraph 520)—R. S., sec. 1718; 23 Stat. L. 56, Sec. 12. The masters of vessels which are wholly owned by citizens of the United States, and which are not registered, or enrolled and licensed, shall pay to the consular officer the fees prescribed in the Tariff of United States Consular Fees for such service.—18 Op. Att. Gen., 234.

Paragraph 193 is amended to read as follows:

193. *Seamen may be hired in foreign port.*—Every master of a vessel in the foreign trade may engage any seaman at any port out of the United States, in the manner provided by law, to serve for one or more round trips from and to the port of departure, or for a definite time, whatever the destination; and the master of a vessel clearing from a port of the United States with one or more seamen so engaged in a foreign port is not required to reship such seamen in a port of the United States, nor, upon the vessel's return to the United States, is he liable to a penalty for failure to produce such seamen. And the master of a vessel in the foreign trade may engage a seaman at any port in the United States, in the manner provided by law, to serve on a voyage to any port, or for the round trip from and to the port of departure, or for a definite time, whatever the destination. So, too, the master of a vessel making regular and stated trips between the United States and a foreign country may engage a seaman for one or more round trips, or for a definite time, or on the return of said vessel to the United States may reship such seaman for another voyage in the same vessel, in the manner provided by law, without the payment of additional fees to any officer for such reshipment or reengagement. It will thus be seen that a master has full power to ship his crew, or any part of it, "by the run", or for a given port or time, or for a round trip, and such shipments may be made either in foreign or domestic ports.—23 Stat. L. 58, Secs. 19 and 20. (Paragraph 205.)

Paragraph 195 is amended by inserting the word "undocumented" before the word "American" in the first line of the paragraph.

Paragraph 196 is amended to read as follows:

196. *Additions to shipping articles.*—Consular officers will be careful to enter the shipment of seamen on the original articles until the space is exhausted; and whenever it becomes necessary to use additional articles, they should firmly attach them to the original articles in such a manner that the new articles can not be separated from the original without discovery or mutilation.

Paragraph 197 is amended to read as follows:

197. *New articles.*—When it is necessary to grant new articles to a vessel, the crew of which was named in articles given at a port of the United States, the consular officer shall transmit to the collector of customs at the port whence the vessel cleared a certificate, under his hand and seal (Form 21), specifying the seamen to whose discharge he has consented, and also those who may have died, absconded, or been forcibly impressed into other service.—29 Stat. L. 688.

Paragraph 202 is amended to read as follows:

202. *Seamen on fishing vessels.*—Except as noted in these Regulations, American seamen, as above defined, engaged on fishing vessels are to be regarded, in respect to the laws applying to discharge, wages, extra wages, relief, and transportation, in the same relation as seamen on other vessels.—30 Stat. L. 764.

Paragraph 205 is amended by cancelling the title "Bond for return of seamen" and substituting therefor "Penalty for failure to return seamen," and by substituting the word "person" for the word "seaman" in line ten.

Paragraph 220 is canceled.

Paragraph 221 is amended to read as follows:

221. *Seamen to be reported.*—When a seaman comes upon a consulate either from another port, or by shipwreck, or in any manner otherwise than by discharge from a vessel at the port, the consular officer will at once notify the Comptroller General of the United States, State and other Departments Division, of the fact, giving the name of the seaman, the date of arrival, the name of the place whence he came, with the date and cause of his leaving such place, the name of the vessel by which he came, and the name of the American vessel on which he was last engaged. This information should be communicated immediately and without waiting until the end of the quarter. (Form No. 126.)

Paragraph 224 is amended to read as follows:

224. *Arrears of wages to be collected and reported.*—It is the duty of the consular officer to collect all arrears of wages that are due to the seaman at the time of his discharge, and to report the same quarterly together with the extra wages collected, to the Department of State (Form No. 124); and vouchers for wages paid to a seaman, as prescribed in Form No. 164, must accompany the relief accounts. The arrears of wages and extra wages are to be paid to the seaman, and consular officers have no authority to retain them for the relief of the seaman.—R. S. Sec. 4581; 30 Stat. L. 759, Sec. 16; 38 Stat. L. 1185, Sec. 19.

Paragraph 245 is amended by inserting the word "undocumented" before the word "American" in the second line of the paragraph.

Paragraph 248 is amended to read as follows:

248. *Foreign seamen.*—It is held that when a seaman, being a foreigner, who has not declared his intention of becoming a citizen and served three years on a merchant vessel, agreeably to an act approved May 9, 1918 (40 Stat. L. 544), is shipped in a foreign port and is discharged in a foreign port, no extra wages are to be collected.—Fed. Cases 16002.

Paragraph 253 and all other paragraphs of the Regulations wherein the term "Auditor for the State and other Departments" appears are amended by cancelling therein the aforesaid term and substituting therefor the term "Comptroller General of the United States, State and Other Departments Division."

Paragraph 260 is amended to read as follows:

260. *Seamen entitled to relief.*—Seamen of the United States entitled to relief when destitute are:

(1) Merchant seamen, being citizens of the United States, or persons coming under the provisions of an act approved May 9, 1918 (40 Stat. L. 544), and who, at the time of applying for relief, are by habit and intent bona fide members of the American merchant marine, although their last service may not have been in an American vessel.

(2) Foreigners regularly shipped in an American vessel in a port of the United States.

The following classes of seamen are to be considered as destitute and entitled to relief regardless of money they may have in possession or of wages due:

(1) Seamen of the United States, formally discharged from American vessels before a consular officer on account of injury or illness incapacitating them for service.—R. S. 4581, amended; 30 Stat. L. 759; 38 Stat. L. 1185.

(2) All seamen, regardless of nationality or port of shipment, who are from shipwrecked American vessels. (Except seamen on fishing or whaling vessels or yachts. 30 Stat. L. 764, Sec. 26.) R. S. 4526, amended; 30 Stat. L. 755.

Paragraph 262 is amended to read as follows:

262. *Conditions of relief.*—Before granting relief, a consular officer should satisfy himself that the applicant is an American seaman as already defined, and that he is entitled to relief under the statutes, usages, and decisions hereinbefore referred to, and that he is destitute. A seaman can not be regarded as

destitute when he has any arrears of wages or extra wages, or is earning his own living, unless he comes within the provisions contained in Paragraph 260 above. The question of fact whether a seaman is or is not destitute is one to be determined by the consular officer to whom the seaman applies for relief, and the consular officer's decision will, in the absence of fraud, be conclusive.—3 Comp. Dec. 40.

Paragraph 264 is amended by adding at the end thereof the words "or by deserting without cause."

Paragraph 266 is amended to read as follows:

266. *Deserters and seamen who are forced to leave their vessels.*—An American citizen serving as seaman on an American vessel is entitled to relief if destitute in a foreign port, notwithstanding he may have deserted without cause or comes upon the consulate otherwise irregularly.—3 Sumn. 115.—A foreigner under like circumstances is not entitled to relief. (Paragraph 250.) When relief is applied for by a deserter, it is the duty of the consular officer to ascertain clearly and satisfactorily, before granting it, that he is justly entitled to it, but, in all such cases, care should be taken that the provisions for the relief of destitute seamen should not be allowed to operate as an incitement to desertion. Consuls should exercise great care in examining and weighing the merits of each case, in order that abuses may not occur. If, however, in applying for relief, an applicant complains that he was compelled to leave the vessel because the voyage was continued contrary to agreement, or that the vessel was badly provisioned or unseaworthy, or that he was cruelly treated by the officers, the consular officer shall investigate carefully the complaint, and if he is satisfied of the truth and justice thereof, he shall discharge the seaman and require the master to pay such seaman one month's wages over and above the wages due at the time of the discharge, and to provide him with adequate employment on board some other vessel, or provide him with passage to the port from which he was shipped, or to the most convenient port of entry in the United States, or to a port agreed to by the seaman. R. S., Sec. 4583; 30 Stat. L., 760. If the vessel shall have left the port, and the consular officer is satisfied that the case is within the provisions of the statute, the facts should be reported to the Department of State.

Paragraph 268 is amended to read as follows:

268. *Whaling vessel orders.*—Orders given by masters of whaling vessels to American seamen shipped "by the lay", and discharged before the end of the voyage, for the said seamen's shares of the catch up to the date of discharge, payable at the end of the voyage, are understood to be of little or no value at the time and place of discharge, and are therefore unavailable for expenditure by the seamen in their own behalf. Discharged seamen who have no means of subsistence at hand other than these orders are for that reason destitute, and fit subjects for relief by the Government, notwithstanding the orders and their contingent prospective value.

Relief out of Government funds is not to be given until the seaman is destitute, having exhausted his own available resources (unless he is discharged for injury or illness incapacitating him for service); but when given it is a pure gratuity, without expectation of indemnity from subsequent acquisitions or realizations of the seaman. If, therefore, these orders can not be utilized by seamen in defraying the cost of their subsistence and other necessaries, or for their transportation, at the time and place of discharge, they should be delivered to the seamen to whom they are respectively payable; or, at the request of a seaman, his order may be sent to the Department of State to be kept for him, and subject to his call. In no case should it be taken from him and sent to the Department for collection for the benefit of the Government.

Paragraph 269 is amended to read as follows:

269. *Stowaways.*—Any person who conceals himself on board a vessel and is discovered when the vessel is at sea, although he has been put on duty as a seaman, can be put on shore at the first available port unless he has been signed

on the ship's articles, in which case he is entitled to the benefits accorded seamen by the Navigation Laws and the shipping articles.

Unless the stowaway has been signed on the articles, it is not the duty of the consular officer to afford relief to him as a destitute seaman in case he is put ashore, and the expenses of relief under such circumstances are not allowed.

Paragraph 274 is amended to read as follows:

274. *Vouchers for relief.*—Proper vouchers for the board, subsistence, clothing, medical attendance and medicines, and any expenditures for the relief of destitute seamen must be taken in every case. (Forms Nos. 95, 96, 97, and 98.) The vouchers for board and medical attendance should show the name of the seaman, the time of subsistence or treatment, giving the date of beginning and termination and the rate per day or week, and, whenever it is practicable, the name of the ship from which and the place where the seaman was discharged. Under the rules of the accounting officers of the United States the receipts for clothing, necessaries, and supplies, given by a seaman making his mark, or otherwise, should be witnessed. The witness should be a disinterested person, not a member of the firm furnishing the articles. The accounts for the relief of seamen must be accompanied by a certificate of the consul that he has neither received nor will receive, directly or indirectly, any pecuniary or other advantage whatever from the expenditures set forth in the accounts.

Paragraph 277 and all other paragraphs of the Regulations wherein the term "Comptroller of the Treasury" appears are amended by cancelling therein the aforesaid term and substituting therefor the term "Comptroller General of the United States."

Paragraph 286 and all other paragraphs of the Regulations wherein provision is made that drafts shall be "drawn upon the Secretary of the Treasury" are amended by substituting therein the word "State" for the words "the Treasury", and all official drafts hereafter drawn by consular officers for whatever purpose shall be drawn upon the Secretary of State.

Paragraph 291 is amended by striking out the words "maintenance and transportation of destitute American seamen", and by substituting therefor the following: "relief and protection of destitute American seamen".

Paragraph 301 is amended by striking out the words "of the bond for the return of his crew" and substituting therefor the words "to return his crew".

Paragraph 308 in canceled.

Paragraph 309 is canceled.

Paragraph 317 is amended to read as follows:

317. *When provisions are reduced.*—If, during a voyage, the allowance of any of the provisions which any seaman is entitled to under section forty six hundred and twelve of the Revised Statutes is reduced, except for any time during which such seaman wilfully and without sufficient cause refuses or neglects to perform his duty, or is lawfully under confinement for misconduct either on board or on shore; or if it shall be shown that any of such provisions are, or have been during the voyage, bad in quality or unfit for use, the seaman shall receive, by way of compensation for such reduction or bad quality, according to the time of its continuance, the following sums, to be paid to him in addition to and to be recoverable as wages:

First. If his allowance is reduced by any quantity not exceeding one-third of the quantity specified by law, a sum not exceeding 50 cents a day.

Second. If his allowance is reduced by more than one-third of such quantity, a sum not exceeding $1 a day.

Third. In respect to bad quality, a sum not exceeding $1 a day.

But if it is shown to the satisfaction of the court before which the case is tried that any provisions, the allowance of which has been reduced, could not be procured or supplied in sufficient quantities, or were unavoidably injured or lost, or if by reason of its innate qualities any article becomes unfit for use and

that proper and equivalent substitutes were supplied in lieu thereof, the court shall take such circumstances into consideration and shall modify or refuse compensation, as the justice of the case may require.—R. S. Sec. 4568; 30 Stat. L. 759, Sec. 14. This paragraph shall not apply to fishing or whaling vessels or yachts.—30 Stat. L. 759, Sec. 26.

Paragraph 320 is canceled.

Paragraph 322 is amended in the last sentence to read as follows:

"The official fee prescribed in the Tariff of United States Consular Fees for settling estates is not chargeable for services required by this paragraph."

Paragraph 334 is amended to read as follows:

334. *Bottomry and sale.*—After the estimate of damage, the master may endeavor to borrow on bottomry the necessary funds for repairs; and in case of inability to do so, he may be forced to sell the vessel. If the necessary funds are procured, and a bottomry bond is given and acknowledged before the consular officer, Form No. 68 may be used.

Paragraph 339 is canceled.

Paragraph 342 is amended to read as follows:

342. *Provisional certificates of registry.*—Consular officers of the United States and such other persons as may be designated by the President for the purpose are authorized to issue provisional certificates of registry to vessels abroad which have been purchased by citizens of the United States, including corporations, as defined in section 4132, Revised Statutes, as amended by the Panama Canal Act, and an act of August eighteenth, nineteen hundred and fourteen.

Such a provisional certificate shall entitle the vessel to the privileges of a vessel of the United States in trade with foreign countries or with the Philippine Islands and the Islands of Guam and Tutuila until the expiration of six months from its date or until ten days after the vessel's arrival at a port of the United States, whichever first happens, and no longer. On arrival at a port of the United States the vessel shall become subject to the laws relating to officers, inspection, and measurement, as amended by the act of August eighteenth, nineteen hundred and fourteen.

The Secretary of Commerce shall prescribe the conditions in accordance with which such provisional certificates shall be issued, and the manner in which they shall be surrendered in exchange for certificates of registry at ports of the United States. (Paragraph 346.)

The form of such provisional certificate shall be prescribed by the Commissioner of Navigation and shall include the name of the ship and of the master, time and place of purchase and the names of purchasers, and the best particulars respecting her tonnage, build, description, and inspection or survey which the consular officer is able to obtain.

Copies of such provisional certificates shall be forwarded as soon as practicable by the issuing officer to the Commissioner of Navigation through the Department of State. No provisional certificates of registry shall be issued by a consular officer except under, and in accordance with, specific instructions of the Department of Commerce.

Paragraph 343 is amended to read as follows:

343. *Operation of vessels structurally unable to proceed to the United States.*—In order to enable the American owners of vessels purchased abroad which are unable to proceed to the United States to protect their rights, if molested or questioned, a consular officer may lawfully make record of the bill of sale in his office, authenticate its execution, and deliver to the purchaser a certificate to that effect; certifying, also, that the owner is a citizen of the United States. Before granting such a certificate, the consular officer shall obtain authorization from the Department of State, and shall require the tonnage of the vessel to be duly ascertained in pursuance of law and inserted in the description of the vessel in his certificate. (Form No. 35.) These facts thus authenticated, if the transfer

is in good faith, entitle the vessel to protection as the lawful property of a citizen of the United States; and the authentication of the bill of sale and of citizenship shall be prima facie proof of such good faith.

Paragraph 346 is amended to read as follows:

346. *Conditions under which provisional certificates of registry and Form 35 may be issued.*—When a consular officer shall have satisfied himself, after the investigation with which he is charged, that the sale of a vessel is not fictitious and is made in good faith, and that the purchaser is a citizen of the United States, he should forward the results of his investigation to the Department for instructions relative to granting a provisional certificate of American registry, or a certificate showing that the bill of sale has been noted in the consulate and that the purchaser is an American citizen. (Paragraph 342.)

Paragraph 348 is amended to read as follows:

348. *Disabilities of foreign-built vessels.*—All foreign-built vessels admitted to American registry, owned on February 1, 1920, by persons citizens of the United States, and all foreign-built vessels owned by the United States at the time of the passage of the Merchant Marine Act of June 5, 1920, (41 Stat. L. 997), when sold and owned by persons citizens of the United States, may engage in the coastwise trade of the United States so long as they continue in such ownership, subject to the rules and regulations of such trade.

Paragraph 349 is amended to read as follows:

349. *Forfeiture and tonnage duties.*—If undocumented foreign-built vessels, owned by American citizens, arrive at ports of the United States, neither the vessels nor the cargoes, if any, shall be subject to discriminatory tonnage fees or duties, or to forfeiture, provided the vessels are admitted to American registry prior to leaving the American port.—38 Stat. L. 1193.—When in foreign ports they are subject to tonnage and other consular fees from which regularly documented vessels are exempt.

Paragraph 352 is amended by substituting the word "discountenanced" for the word "discouraged" in the title, and by adding the word "insubordination" after the word "discountenance" in the first sentence.

WARREN G HARDING

THE WHITE HOUSE,
September 5, 1922.

[No. 3731.]

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